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|   |                                                                     | <p>Plaintiffs cite no authority providing that travel and lodging costs—which would otherwise fall within the catchall of Code of Civil Procedure section 1033.5(c)(4)—are <u>not</u> subject to the Rule 3.1700 deadlines.</p> <p>Plaintiffs did not timely request travel and lodging costs in their Memorandum of Costs. Therefore, the court denies as untimely Plaintiff’s request for travel and lodging costs.</p> <p>Plaintiffs to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 8 | Cemex Construction Materials Pacific, LLC vs. Gunner Concrete, Inc. | <p><b>TENTATIVE RULING:</b></p> <p><b><u>Motion to Seal</u></b></p> <p>Plaintiff Cemex Construction Materials Pacific, LLC moves to seal the unredacted version of Exhibit A to Cemex’s Complaint filed January 17, 2024, a credit application and agreement that contains the social security numbers of individual Defendants Douglas Scott Milne II and Geneva Milne. For the following reasons, the motion is GRANTED.</p> <p>To seal a record, the moving party must file a motion for such relief, along with a memorandum and a declaration containing facts sufficient to justify the sealing. (CRC 2.551(b)(1).) The motion must be served on all parties, and unless the court orders otherwise, a complete copy of the document must be served on all other parties that already possess copies, along with the redacted version. (CRC 2.551(b)(2).)</p> <p>To grant a motion to seal, the court must expressly find that:</p> <ol style="list-style-type: none"> <li>1. an overriding interest exists that overcomes the right of public access to the record;</li> <li>2. the overriding interest supports sealing the records;</li> <li>3. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;</li> <li>4. the proposed sealing is narrowly tailored; and</li> <li>5. no less restrictive means exist to achieve the overriding interest.</li> </ol> <p>(CRC 2.550(d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal. App. 4th 974, 988.)</p> |

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|  | <p>These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. (See <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal. 4th 1178, 1217–18; <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal. App. 4th 97, 104; <i>People v. Jackson</i> (2005) 128 Cal. App. 4th 1009, 1026–27 (finding that in determining whether to seal records, courts must weigh constitutional requirements for disclosure against such factors as privacy rights).)</p> <p>A sealing order must also: (a) specifically state facts supporting the above findings; and (b) be narrowly tailored (<i>i.e.</i>, it should direct sealing of only those documents and pages that contain material that needs to be placed under seal; all other portions of each document or page must remain in the public file). (CRC 2.550(e)(1); Weil &amp; Brown, Cal. Prac. Guide Civ. Pro. Before Trial (Rutter 2017) ¶ 9:418.1.)</p> <p>Examples of documents that may qualify to be sealed are:</p> <ul style="list-style-type: none"><li>• Documents containing trade secrets. (<i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300 [<i>dictum</i>]; <i>McGuan v. Endovascular Tech., Inc.</i> (2010) 182 Cal.App.4th 974, 988 [dealing with quality control records and complaint handling procedures].)</li><li>• Documents containing material protected by a privilege. (<i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 108 [addressing attorney-client privilege (<i>dictum</i>)].)</li><li>• Confidential settlement agreement. (<i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283 [<i>dictum</i>].) But the parties' agreement to keep materials confidential (such as in a stipulated protective order or other agreement) is never enough, standing alone, to support sealing. (CRC 2.551(a).)</li><li>• Documents containing personal information subject to a right of privacy. (<i>In re M.T.</i> (2024) 106 Cal.App.5th 322.)</li></ul> <p>(Weil &amp; Brown, Cal. Prac. Guide: Civ. Pro. Before Trial ¶ 9:418.5-9.)</p> <p>Here, Plaintiff moves to seal the unredacted version of Exhibit A to Cemex's Complaint filed January 17, 2024, a credit application and agreement that contains the social security numbers of individual Defendants Douglas Scott Milne II and Geneva Milne.</p> <p>Defendants' privacy interest in their social security numbers overcomes the right of public access to the records, and that interest</p> |
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|    |                             | <p>supports sealing the records. There is a substantial probability that the overriding interest will be prejudiced if the documents are not sealed; the proposed sealing order is narrowly tailored; and there are no less restrictive means to achieve the overriding interest.</p> <p>Other than the Court, no persons or parties are authorized to inspect the sealed record. The sealed material may not be disclosed in anything that is subsequently publicly filed. (Cal. Rules of Court, rule 2.551(e).)</p> <p>Plaintiff is ordered to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 9  | Vega vs. General Motors LLC | <p><b>TENTATIVE RULING:</b></p> <p><b><u>Motion for Attorney's Fees</u></b></p> <p>Plaintiff Angelica Vega moves for an award of reasonable attorney's fees. For the following reasons, the motion is CONTINUED to July 8, 2026, at 9:00 a.m. in this Department.</p> <p>A request for attorney's fees filed prior to the rendition of judgment is premature, as there can be no prevailing party until there is a final judgment or dismissal, and courts generally cannot make interim attorney fee awards unless authorized by statute. (<i>See Yuba Cypress Housing Partners, Ltd. v. Area Developers</i> (2002) 98 Cal.App.4th 1077, 1086; <i>Kaura v. Stabilis Fund II, LLC</i> (2018) 24 Cal.App.5th 420, 436; <i>Bell v. Farmers Ins. Exchange</i> (2001) 87 Cal.App.4th 805, 831 [holding that even when not explicitly barred, interim awards are not allowed in absence of clear expression of legislative intent].)</p> <p>Here, the court record reflects no entry of judgment or dismissal.</p> <p>Should Plaintiff file and serve a Request for Dismissal of this matter, Plaintiff's motion for attorney's fees (ROA # 43) and Memorandum of Costs (ROA # 41) SHALL be deemed filed and served on the date of entry of dismissal.</p> <p>Plaintiff to give notice.</p> |
| 10 | Zancanaro vs. Moore         | <p><b>TENTATIVE RULING:</b></p> <p><b><u>Motion for Leave to Amend Complaint</u></b></p> <p>Plaintiff Gina Zancanaro moves to amend the complaint to file a proposed second amended complaint. The motion is CONTINUED to July 8, 2026, at 9:00 a.m. in this Department.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |